

[4 EDW. 7.] *Dumbarton Tramways Order Confirmation* [Ch. i.]
Act, 1904.



CHAPTER i.

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 relating to Dumbarton Tramways. A.D. 1904.
[29th March 1904.]

WHEREAS His Majesty's Secretary for Scotland has made the Provisional Order set forth in the schedule hereunto annexed under the provisions of the Private Legislation Procedure (Scotland) Act 1899 and it is requisite that the said Order should be confirmed by Parliament: 62 & 63 Vict. c. 47.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed shall be and the same is hereby confirmed. Confirmation of Order in schedule.

2. This Act may be cited as the Dumbarton Tramways Order Confirmation Act 1904. Short title.

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SCHEDULE.

DUMBARTON TRAMWAYS.

Provisional Order for conferring powers upon the Electric Supply Corporation Limited with respect to the construction and maintenance of tramways in the Royal Burgh of Dumbarton and for other purposes.

WHEREAS the making and maintaining of the tramways herein-after described and by this Order authorised would be of public and local advantage :

And whereas the Electric Supply Corporation Limited is willing at its own expense to construct the tramways if authorised so to do and it is expedient that it be empowered accordingly as by this Order provided :

And whereas it is expedient that the provisions of the Tramways Act 1870 as to the purchase of the undertaking of the Company should be modified as herein-after mentioned :

And whereas it is expedient that the Company should be empowered to make and execute the street alterations and works and to acquire the lands in this Order mentioned in that behalf :

And whereas plans and sections showing the lines and levels of the tramways by this Order authorised and also a book of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Order were duly deposited with the principal sheriff clerk of the county of Dumbarton and with the town clerk of the Royal Burgh of Dumbarton and are herein-after referred to as "the deposited plans sections and book of reference" :

And whereas the purposes aforesaid cannot be effected without an Order of the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899 :

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary for Scotland orders as follows :—

Short title.

1. This Order may be cited as the Dumbarton Tramways Order 1904.

2. The Lands Clauses Acts and section 3 (Interpretation of terms) Part II. (Construction of tramways) and Part III. (General provisions) of the Tramways Act 1870 are (except where inconsistent with or expressly varied by this Order) incorporated with and form part of this Order.

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Incorporation of general Acts.

3. In this Order the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such construction and the following expressions have the meanings hereby assigned to them:—

Interpretation.

“The Company” means the Electric Supply Corporation Limited;

“The tramway” “the tramways” and “the undertaking” mean respectively the tramways and the undertaking by this Order authorised;

“Mechanical power” includes steam electric and every other motive power (other than animal power);

“Engine” includes motor;

“The burgh” means the Royal Burgh of Dumbarton;

“The town council” means the provost magistrates and town council of the burgh.

4. Subject to the provisions of this Order the Company may make form lay down work use and maintain the tramways herein-after described in the lines and according to the levels and within the limits of deviation shown on the deposited plans and sections and in all respects in accordance with those plans and sections with all proper rails plates posts tubes wires apparatus generating stations depôts works and conveniences connected therewith Provided that nothing in this Order shall authorise any interference with any electric lines and works of any undertakers under the Electric Lighting Acts 1882 and 1888 to which the provisions of section 15 of the former Act apply except in accordance with and subject to the provisions of that section The tramways herein-before referred to and authorised by this Order are—

Power to make tramways.

Tramway No. 1 A tramway 2 miles 0 furlongs 4·6 chains or thereabouts in length consisting of 1 mile 3 furlongs 3 chains or thereabouts of single line and 5 furlongs 1·6 chains or thereabouts of double line wholly situate in the Royal Burgh and county of Dumbarton commencing at a point in the Glasgow Road at the eastern boundary of the burgh.

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127 yards or thereabouts north-west of the entrance gate into Dumbuck House passing thence along the Glasgow Road Castle Street Church Place High Street Bridge Street Bridge over the River Leven West Bridgend and Dumbarton and Alexandria Road and terminating at the northern boundary of the burgh at a point 420 yards or thereabouts in a northerly direction from the centre of the bridge over the Glasgow Dumbarton and Helensburgh line of the North British Railway Company :

Tramway No. 2 A tramway 6 furlongs 4·1 chains or thereabouts in length consisting of 5 furlongs 5·5 chains or thereabouts of single line and 8·6 chains or thereabouts of double line wholly situate in the Royal Burgh and county of Dumbarton commencing by a junction with Tramway No. 1 at the junction of Church Street and Church Place passing thence along Church Street Strathleven Place and Bonhill Road and terminating at a point in the said Bonhill Road 17 yards or thereabouts in a south-westerly direction from the north corner of the Old Toll House at Barloan.

Power to
alter certain
levels.

5. Subject to the provisions of this Order the Company may but only with the consent of the town council and in accordance with plans and sections approved by the town council make in the lines shown on the deposited plans relating thereto and if and so far as shown on the deposited sections according to the levels shown on those sections the alterations in roads herein-after described :—

Tramway No. 1 A lowering of the levels of the Glasgow Road where it is crossed by the bridge carrying the line of the Lanarkshire and Dumbartonshire Railway between points respectively 33 yards or thereabouts measured in an easterly direction and 23 yards or thereabouts measured in a westerly direction from the centre of the said bridge :

Tramway No. 2 A lowering of the levels of the Bonhill Road where the said road passes under the bridge carrying the Glasgow Dumbarton and Helensburgh line of the North British Railway Company between points respectively 23 yards or thereabouts measured in a southerly direction and 23 yards or thereabouts measured in a westerly direction from the centre of the said bridge.

Power to
acquire lands
for generat-
ing station.

6. The Company shall unless otherwise agreed between the town council and the Company construct the generating station within the burgh and the Company may enter upon take and use

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the lands described in the schedule to this Order and shown on the deposited plans and may on such lands but not under the powers of this Order elsewhere construct a station or stations for generating electric power and provide and use dynamos engines and other apparatus and things necessary or proper for the generation of electricity for the purposes of the undertaking. A.D. 1904.

7. Whereas in the construction of the works hereby authorised or otherwise in exercise of the powers of this Order it may happen that portions only of the properties shown on the deposited plans may be sufficient for the purposes of the same and that such portions may be severed from the remainder of the said properties without material detriment thereto Therefore notwithstanding section 90 of the Lands Clauses Consolidation (Scotland) Act 1845 the owners of and other persons interested in the properties described in the schedule to this Order and whereof parts only are required for the purposes of this Order may if such portions can in the opinion of the jury arbiter or other authority to whom the question of disputed compensation shall be submitted be severed from the remainder of such properties without material detriment thereto be required to sell and convey to the Company the portions only of the premises so required without the Company being obliged or compellable to purchase the whole or any greater portion thereof the Company paying for the portions required by them and making compensation for any damage sustained by the owners thereof and other parties interested therein by severance or otherwise. Owners may be required to sell parts only of certain properties.

8. No tramway shall be opened for public traffic until it has been inspected and certified to be fit for such traffic by the Board of Trade. Inspection by Board of Trade.

9. If there be any omission misstatement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plans or specified in the deposited book of reference the Company after giving ten days' notice to the owners lessees and occupiers of the land in question may apply to the sheriff of the county in which such land is situate for the correction thereof and if it appear to the sheriff that the omission misstatement or wrong description arose from mistake he shall certify the same accordingly and shall in such certificate state the particulars of the omission and in what respect any such matter is misstated or wrongly described and such certificate shall be deposited with the principal sheriff clerk of the said county and a duplicate thereof shall also be deposited with the town clerk of the burgh or as the case may be Correction of errors &c. in deposited plans and book of reference.

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Agreements
between
Company
and road
authorities.

10. The Company may subject to the provisions of this Order enter into agreements with any road authority with respect to the forming laying down maintaining renewing repairing working and using of the tramways and the rails plates sleepers posts wires apparatus and works connected therewith and for facilitating the passage of carriages and traffic over and along any roads or streets upon or along which any of the tramways are intended to be laid or any part thereof.

Temporary
tramways to
be made
where neces-
sary.

11. Where by reason of the execution of any work affecting the surface and soil of any road along which any of the tramways are laid it is in the opinion of the road authority necessary or expedient temporarily to remove or discontinue the use of such tramway or any part thereof the Company may with the consent in writing of the road authority and subject to such conditions and in accordance in all respects with such regulations as the road authority may make construct in the same or any adjacent road and subject to the like conditions and in accordance with the like regulations maintain so long as occasion may require a temporary tramway or temporary tramways in lieu of the tramway or part of a tramway so removed or discontinued.

If any difference arise between the Company and any road authority with respect to the reasonableness of any such conditions or regulations or with respect to the mode of constructing any temporary tramway or temporary tramways under the authority of this section the same shall be settled in the manner specified in section 33 of the Tramways Act 1870 for the settlement of the differences in that section mentioned.

Stoppage of
roads during
execution of
works.

12. Subject to the provisions of this Order the Company may during the execution of the works with the consent in writing of the road authority in whose district any road or bridge shall be situate stop up temporarily the carriageway or footway of any road or bridge as they think necessary and for that purpose may put up

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bars posts and other erections Provided that the Company shall before stopping up any footway provide a temporary substitute therefor. A.D. 1904.

13. In addition to the other lands which the Company are by this Order authorised to purchase and acquire they may purchase take on lease or acquire by agreement for the purpose of the undertaking and may hold any lands not exceeding ten acres and they may on such lands and on any other lands purchased or acquired under the authority of this Order erect or construct and hold carriage and engine houses stables goods sheds depôts yards offices buildings siding works and other conveniences in connexion with the undertaking but nothing in this Order shall exonerate the Company from any action or other proceeding for nuisance in the event of any nuisance being caused or permitted by them on any land purchased or acquired by agreement under the powers of this section or authorise the Company to construct any station for generating electric power elsewhere than on the lands described in the schedule to this Order. Purchase of
lands by
agreement.

14. For the protection of the town council the following provisions shall unless otherwise agreed between the Company and the town council have effect without prejudice to the protection otherwise provided by this Order :— For protec-
tion of town
council.

(1) Before commencing any work the Company shall submit to the town council plans and sections of their proposed works and if the town council shall not within one month after the receipt of the said plans state in writing their disapproval of the same the Company shall be entitled to proceed with the work in accordance with the plans so submitted :

(2) Subject to the provisions of this Order and notwithstanding anything to be shown on the plans of the tramways that may be prepared by the Company the line of the tramways shall when constructed be laid and maintained along (or as nearly as possible along) the centre of the roads streets or bridges within the burgh and the precise position of the said line shall be adjusted with the town council In the event of any deviation being found to be necessary at any time in the line of the tramways exceeding twelve inches from the centre of the roadway such deviation shall be subject to the approval of the town council :

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- (3) All snow over a depth of three inches of natural fall removed by the Company from the tramways to the sides of the roads streets or bridges shall as soon as reasonably possible be carted or taken away therefrom by the Company and shall not be allowed to remain on the sides of the roads streets or bridges :
- (4) The size position design and construction of all poles standards or brackets used within the burgh in connexion with the tramways shall be subject to the reasonable approval of the town council :
- (5) Notwithstanding the provisions of section 44 of the Tramways Act 1870 the Company shall not assign or sublet the undertaking or transfer their obligations in connexion therewith without the previous consent in writing of the town council Provided that such consent of the town council shall not be required to any assignment or subletting by the Company to Crompton and Company Limited or to any other arrangement between the Company and Crompton and Company Limited in connexion with this Order :
- (6) In the event of any dispute or difference arising between the Company and the town council under this section the same shall be determined by arbitration.

Restriction
on taking
houses of
labouring
class.

15.—(1) The Company shall not under the powers of this Order purchase or acquire in any district within the meaning of the Public Health (Scotland) Act 1897 ten or more houses which on the fifteenth day of December last were occupied either wholly or partially by persons belonging to the labouring class as tenants or lodgers or except with the consent of the Secretary for Scotland ten or more houses which were not so occupied on the said fifteenth day of December but have been or shall be subsequently so occupied.

(2) If the Company acquire or appropriate any house or houses for the purposes of this Order in contravention of the foregoing provisions of this section they shall be liable to a penalty of five hundred pounds in respect of every such house which penalty shall be recoverable by the Secretary for Scotland by action in the Court of Session and shall be carried to and form part of the Consolidated Fund of the United Kingdom Provided that the court may if it think fit reduce such penalty.

(3) For the purposes of this section—

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The expression "house" means any house or part of a house occupied as a separate dwelling; and

The expression "labouring class" means mechanics artisans labourers and others working for wages hawkers costermongers persons not working for wages but working at some trade or handicraft without employing others except members of their own family and persons other than domestic servants whose income does not exceed an average of thirty shillings a week and the families of any of such persons who may be residing with them.

16. The Company may for any purpose in connexion with the alterations of streets and roads by this Order authorised upon any lands acquired by them under the powers of this Order and also in any street within the limits of deviation shown on the deposited plans raise sink or otherwise alter the position of any sewer drain channel water pipe gas pipe or hydraulic pipe belonging to or connected with any house or building adjoining or near to such works and also any main or other pipe laid down or used by any company for carrying a supply of gas or for hydraulic purposes or any pipe tube wire or apparatus laid down or used for telegraphic telephonic or electric purposes and may remove any other obstruction making proper substituted works during any alteration and causing as little detriment and inconvenience as circumstances admit and making reasonable compensation to any company or person who suffers damage by such alteration:

Power to
alter drains
pipes &c.

Provided that nothing in this section shall extend to authorise any interference with any works of any undertakers within the meaning of the Electric Lighting Acts 1882 and 1888 to which the provisions of section 15 of the former Act apply.

17. The Company may cut and lop any trees planted in or near any highway along which the tramways are laid which may in any way interfere with the construction or working of such tramways or the trolley wires or the clear and safe passage of carriages and passengers thereon doing no unnecessary damage to the trees and making compensation to any persons who may sustain damage by the exercise of the powers conferred by this section. Such compensation shall in default of agreement be fixed by arbitration in terms of the section of this Order the marginal note whereof is "Provisions as to arbitration." Provided that except in cases of emergency the Company shall give written

Company
may lop trees
overhanging
public high-
way.

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Period for compulsory purchase of lands by Company.

18. The powers granted by this Order to the Company for the compulsory purchase of lands shall cease after the expiration of two years from the passing of the Act confirming this Order.

Power to grant servitudes &c. by agreement.

19. Persons empowered by the Lands Clauses Acts to sell and convey or discharge lands may if they think fit subject to the provisions of those Acts and of this Order grant to the Company any servitude right or privilege (not being a servitude right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Order in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants servitudes rights and privileges as aforesaid respectively.

Purchase of undertaking by local authority.

20. Notwithstanding anything contained in the Tramways Act 1870 the following provisions shall have effect:—

- (1) The powers of purchase conferred by the forty-third section of that Act shall not be exerciseable by the town council until after the expiration of a period of thirty-five years from the passing of the Act confirming this Order but such powers may be exercised at any time after the expiration of such thirty-five years on not less than twelve calendar months' previous notice of the intention of the town council to exercise the same being given to the Company. Provided that in case of any purchase made under the said forty-third section in pursuance of such a notice as aforesaid expiring at any time after the end of thirty-five years and before the end of forty-two years from the passing of the Act confirming this Order the price to be paid for the undertaking shall not be ascertained in the manner provided by the said forty-third section but shall be the fair value of such undertaking and such value shall (in the event of the town council and the Company failing to agree upon the amount) be fixed by arbitration and there shall be added thereto and paid by the town council to the Company such sum as shall be the value of the goodwill of the undertaking which for the purposes of this section shall be valued as

between a willing buyer and a willing seller and as a going concern. Provided also that in valuing the said goodwill after the expiration of thirty-five years and before the end of forty-two years as aforesaid due consideration shall be given to the power of the town council to purchase after the end of forty-two years under the powers conferred upon them by the said forty-third section :

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- (2) Whereas the town council in the year 1902 obtained the Dumbarton Electric Lighting Order 1902 for the supply of electrical energy within the burgh. And whereas by an agreement made in April 1903 between the town council of the first part Crompton and Company Limited of the second part and the Company of the third part the Company agreed with the town council to construct and maintain certain works within the burgh for the supply of electricity under the said Electric Lighting Order and also to supply electricity within the burgh in the manner and upon the terms specified in such agreement but without divesting the town council of any legal powers given to them or any legal liabilities imposed on them by the Electric Lighting Acts or by the said Order. And it was by the same agreement provided that in the events therein mentioned the said agreement might be or should be deemed to have been peremptorily determined by the town council and that in the event of such determination the town council should be bound to purchase upon the terms therein mentioned the undertaking of the Company created and carried on under that agreement. Be it enacted that if and whenever the said agreement shall under any of the provisions thereof be or be deemed to have been peremptorily determined by the town council and the undertaking of the Company under the said agreement shall by reason of such determination be sold to the town council then the town council shall be bound at the same time to purchase and shall purchase the undertaking at such a price as shall be equal to the actual capital expenditure incurred by the Company in connexion with the undertaking with the addition thereto of the loss incurred by the Company in or about the working of

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the undertaking and of a sum equal to ten per centum per annum upon all such expenditure calculated from the date when such expenditure was made less any amount which may have been earned and divided by the Company as profit and for the purpose of effecting such purchase the town council shall have and may exercise the same powers as if such purchase were effected in pursuance of an agreement duly made under the forty-fourth section of the Tramways Act 1870.

Deposit fund
not to be
repaid except
so far as
tramways are
opened.

21. Whereas pursuant to the General Orders under the Private Legislation Procedure (Scotland) Act 1899 and to the Parliamentary Deposits Act 1846 as applied in such General Orders a sum of one thousand six hundred and sixty-nine pounds being five per centum upon the amount of the estimate in respect of the tramways authorised by this Order has been deposited with the King's and Lord Treasurer's Remembrancer on behalf of the Court of Exchequer in Scotland in respect of the application for this Order (which sum is referred to in this Order as "the deposit fund") Be it enacted that notwithstanding anything contained in the said Parliamentary Deposits Act 1846 the deposit fund shall not be paid or transferred to or on the application of the person or persons or the majority of the persons named in the warrant or order issued in pursuance of the said Act or the survivors or survivor of them (which persons survivors or survivor are or is in this Order referred to as "the depositors") unless the Company shall previously to the expiration of the period limited by this Order for completion of the tramways open the same for the public conveyance of passengers and if the Company shall make default in so opening the tramways the deposit fund shall be applicable and shall be applied as provided by the next following section Provided that if within such period as aforesaid the Company open any portion of the tramways for the public conveyance of passengers then on the production of a certificate of the Board of Trade specifying the length of the portion of the tramways opened as aforesaid and the portion of the deposit fund which bears to the whole of the deposit fund the same proportion as the length of the tramways so opened bears to the entire length of the tramways the court shall on the application of the depositors or the majority of them order the portion of the deposit fund specified in the certificate to be paid or transferred to them or as they shall direct and the certificate of the Board of Trade shall if signed by the secretary or by an assistant secretary of the said

Board be sufficient evidence of the facts therein certified and it shall not be necessary to produce any certificate of the Act confirming this Order having passed anything in the said Parliamentary Deposits Act 1846 to the contrary notwithstanding. A.D. 1904.

22. If the Company do not previously to the expiration of the period limited by this Order for the completion of the tramways complete the same and open them for the public conveyance of passengers then and in every such case the deposit fund or so much thereof as shall not have been paid to the depositors shall be applicable and after due notice in the Edinburgh Gazette shall be applied towards compensating any landowners or other persons whose property has been interfered with or otherwise rendered less valuable by the commencement construction or abandonment of the tramways or any portion thereof or who have been subjected to injury or loss in consequence of the compulsory powers of taking property conferred upon the Company by this Order and also in compensating all road authorities for the expense incurred by them in taking up any tramway or materials connected therewith placed by the Company in or on any road vested in or maintainable by such road authorities respectively and in making good all damage caused to such roads by the construction or abandonment of such tramways and shall be distributed in satisfaction of such compensation as aforesaid in such manner and in such proportions as to the Court of Exchequer in Scotland may seem fit and if no such compensation is payable or if a portion of the deposit fund has been found sufficient to satisfy all just claims in respect of such compensation then the deposit fund or such portion thereof as may not be required as aforesaid shall if a judicial factor has been appointed or the Company is insolvent and has been ordered to be wound up or the undertaking has been abandoned be paid or transferred to such factor or to the liquidator or liquidators of the Company or be applied in the discretion of the court as part of the assets of the Company for the benefit of the creditors thereof and subject to such application shall be repaid or re-transferred to the depositors Provided that until the deposit fund has been repaid or re-transferred to the depositors or has become otherwise applicable as hereinbefore mentioned any interest or dividends accruing thereon shall from time to time and as often as the same shall become payable be paid to or on the application of the depositors. Application of deposit fund.

23. If the tramways shall not be completed within three years from the passing of the Act confirming this Order then on the expiration of such period the powers by this Order granted to the Company for making and completing the same or otherwise in Period for completion of tramways.

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A.D. 1904. — relation thereto shall cease to be exercised except as to so much of the tramways as shall then be completed.

Gauge of tramways.

24. The tramways shall be constructed on a gauge of four feet seven and three-quarter inches. Provided always that so much of section 34 of the Tramways Act 1870 as limits the extent of the carriage used on any tramway beyond the outer edge of the wheels of such carriage shall not apply to carriages used on the tramways but no engine or carriage used on the tramways shall exceed six feet six inches in width or such other width as may from time to time be prescribed by the Board of Trade.

As to position in road of tramways.

25. Notwithstanding anything shown on the deposited plans the tramways shall be constructed and maintained in such position in the road as the road authority and the Company may agree or as in case of difference between them may be determined by arbitration in terms of the section of this Order whereof the marginal note is "Provisions as to arbitration." Provided that if before commencing to construct the tramway in the district of any road authority the Company deliver to the authority a plan showing the proposed position in the road of the tramway and the authority do not within one month give notice to the Company of any objection such authority shall be taken to have agreed to the position in the road of the tramway as shown by the said plan. Provided also that in the construction of any such tramway in a position other than that shown on the deposited plans no rail shall be so laid that a less space than nine feet six inches shall intervene between it and the outside of the footpath on either side of the road if one third of the owners or one third of the occupiers of the premises abutting on the place where such less space shall intervene shall by writing under their hand addressed and delivered to the Company within three weeks after receiving from the Company notice in writing of their intention express their objection thereto. If any such objection be made the Company may construct the tramway in the position shown on the deposited plans.

Alteration of levels of roads.

26. If by reason of the construction of the tramways or any portion thereof any alteration is rendered necessary in the level of any road the reasonable expense of making such alteration shall be borne and paid by the Company and if any difference shall arise between the Company and any road authority as to the reasonableness of such expenses or as to any other matter under this section the matter in difference shall be settled by arbitration in terms of the section of this Order whereof the marginal note is "Provisions as to arbitration."

27. If and whenever after the passing of the Act confirming this Order any road authority alters the level of any road along or across which any part of the tramway is laid or authorised to be laid the Company may and shall alter or (as the case may be) lay their rails so that the uppermost surface thereof shall be on a level with the surface of the road as altered.

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Tramways to be kept on level of surface of road.

28. In addition to the requirements of section 26 of the Tramways Act 1870 the Company shall at the same time as they give notice to the road authority of their intention to open or break up any road for the purpose of constructing laying down maintaining and renewing any of the tramways lay before the Board of Trade a plan showing the proposed mode of constructing laying down maintaining and renewing such tramways and a statement of the materials intended to be used therein and the Company shall not commence the construction laying down maintenance and renewal of any of the tramways or part of any of the tramways respectively except for the purpose of necessary repairs until such plan and statement have been approved by the Board of Trade and after such approval the works shall be executed in accordance in all respects with such plan and statement and under the superintendence and to the reasonable satisfaction of the surveyor of the road authority as provided by section 26 of the said Act Provided that the word "materials" in this section does not include materials used for paving any part of any street or road under the provisions of the Tramways Act 1870 or this Order.

Plan of proposed mode of construction.

29. The rails of the tramways shall be such as the Board of Trade may approve.

As to rails of tramways.

30. The Company shall at all times maintain and keep in good condition and repair and so as not to be a danger or annoyance to the ordinary traffic the rails of the tramways and the substructure upon which the same rest and if the Company at any time fail to comply with this provision or with the provisions of section 28 of the Tramways Act 1870 they shall be subject to a penalty not exceeding five pounds for every day on which such non-compliance continues.

Penalty for not maintaining rails and roads.

31. In case it is represented in writing to the Board of Trade by the road authority of any district in which the tramways or any portion thereof are or is situate or by twenty inhabitant ratepayers of such district that the Company have made default in complying with the provisions in the immediately preceding section contained or with any of the requirements of section 28 of the Tramways Act

Board of Trade may on complaint inspect tramways.

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A.D. 1904. 1870 the Board of Trade may if they think fit direct an inspection by an officer to be appointed by the said Board and if such officer reports that the default mentioned in such representation has been proved to his satisfaction then and in every such case a copy of such report certified by a secretary or an assistant secretary of the Board of Trade may be adduced as evidence of such default and of the liability of the Company to such penalty or penalties in respect thereof as is or are by the immediately preceding section imposed.

Local and
road autho-
rities to have
access to
sewers &c.

32. Every local and road authority shall be entitled at any time before or after the construction of the tramways to lay sewers drains gas pipes water pipes and electric or telephonic apparatus as they may find necessary and shall be entitled to cross over and go under the tramways for that purpose as well as for the purpose of repairing renewing and altering any sewers drains gas pipes water pipes electric or telephonic apparatus and shall at all times be entitled to access to the sewers drains gas pipes water pipes electric or telephonic apparatus as aforesaid and shall not be liable to the Company for any interruption of traffic or loss occasioned to them by reason of the exercise of the said rights hereby reserved.

Cross-overs
to be con-
structed in
certain cases.

33. Where in any road in which a double line of tramways is laid there shall be less width between the outside of the footpath at either side of the road and the nearest rail of the tramway than nine feet six inches the Company shall if and where required by the Board of Trade construct a cross-over or cross-overs connecting the one tramway with the other and by the means of such cross-over or cross-overs the traffic shall when necessary be diverted from one tramway to the other.

Power to
make addi-
tional cross-
overs and to
double tram-
way lines.

34.—(1) The Company may subject to the provisions of this Order with the consent of the Board of Trade make maintain alter and remove such cross-overs passing places sidings junctions and other works in addition to those particularly specified in and authorised by this Order as they find necessary or convenient for the efficient working of the tramways or for providing access to any warehouses stables or carriage houses or works of the Company.

(2) Notwithstanding anything shown on the deposited plans the Company may with the consent of the Board of Trade lay down double lines in lieu of single lines or single lines in lieu of double lines or interlacing lines in lieu of double or single lines on any of the tramways and if at any time the road in which any tramway or part thereof is authorised to be laid or is laid has been or shall

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be altered or widened the Company may with the like consent A.D. 1904.
construct such tramway or part thereof or as the case may be
take up or reconstruct the same in such position as they may
think fit.

(3) Provided that if in the construction of any works under this section any rail is intended to be so laid that a less space than nine feet six inches would intervene between it and the outside of the footpath on either side of the road the Company shall not less than one month before commencing the works give notice in writing to every owner and occupier of premises abutting on the place where such less space would intervene and such rail shall not be so laid if the owners or occupiers of one third of such premises by writing under their hands addressed and delivered to the Company within three weeks after receiving the notice from the Company express their objection thereto.

35. The following provisions for the protection of the North British Railway Company the Lanarkshire and Dumbartonshire Railway Company and the Dumbarton and Balloch Joint Line Committee (in this section called "the railway companies") shall unless otherwise agreed between the Company and the railway companies respectively apply and have effect (that is to say):—

For protec-
tion of rail-
way com-
panies.

(1) Before commencing any works or operations under the powers of this Order affecting any railway of the railway companies including the branch railways or sidings of the Dumbarton and Balloch Joint Line Committee leading into the Leven shipbuilding yard and the dockyard respectively where those branch railways or sidings cross the Glasgow Road and Castle Street on the level or affecting any bridge over or under any such railway or the roadway under any such bridge the Company shall submit plans and sections of such works or operations to the railway companies respectively for their approval and the said works and operations shall be constructed and carried on in conformity only with such plans and sections and at the sight and to the reasonable satisfaction of the engineer of the railway companies respectively and such works shall thereafter be maintained and repaired by the Company to the reasonable satisfaction of such engineer. Provided that the approval of the railway companies respectively shall not be unreasonably withheld and that it shall be

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deemed to have been given unless the railway companies signify their disapproval within twenty-eight days after submission of the said plans and sections :

- (2) In constructing maintaining and using Tramway No. 1 by this Order authorised across the said branch railways or sidings leading into the Leven shipbuilding yard and the dockyard where those railways or sidings respectively cross the Glasgow Road and Castle Street on the level the Company shall subject to any award or determination by the arbiter to be appointed under the provisions of this section so carry out their works as not to injure or interfere with the use of such branch railways or sidings for railway traffic either during or after the construction of the tramway and shall at their own expense make all necessary alterations in the rails and permanent way of the branch railways or sidings at such level crossings as may be necessary to enable the tramway to cross the same Provided that the said tramway shall be constructed and worked at the level crossings aforesaid subject to such requirements as the Board of Trade may prescribe :
- (3) If on application made to the Board of Trade by the Company or the Dumbarton and Balloch Joint Line Committee the Board of Trade shall be of opinion that it is necessary in consequence of the construction and use of the said Tramway No. 1 to make any provision for the regulation and protection of the traffic on the branch railways or sidings at the said level crossings or either of them beyond that which at present exists all works necessary for that purpose shall be provided by and at the expense of the Company who shall if so ordered by the Board of Trade also repay to the joint committee any additional costs or expenses or proportion thereof to which the joint committee may be reasonably put in connexion with the working and regulation of the traffic at the said level crossings in consequence of any requirement of the Board of Trade under this section and if any difference shall arise between the Company and the joint committee with respect to the conduct of the traffic on the tramway and the branch railways or sidings respectively such difference shall be determined by the Board of Trade :

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- (4) The Company shall not in the construction maintenance or use of the tramways by this Order authorised injure alter or interfere with the structure of any bridge over or under any railway of the railway companies or cause any interruption to or interference with the traffic on any such railway except as otherwise provided by this Order :
- (5) If in constructing the tramways by this Order authorised the Company lower the level of any road passing under any railway of the railway companies the Company shall if so determined by the arbiter to be appointed as after mentioned underpin or otherwise strengthen the bridge carrying the railway over such road and such underpinning or strengthening shall be executed at the sole cost of the Company and at the sight and to the reasonable satisfaction of the engineer of the railway companies respectively and the Company shall pay to the railway companies respectively all expenses properly incurred by them in connexion with such underpinning or strengthening including the expense of inspectors signalmen watchmen and others and all extra precautions for the safety and working of traffic necessitated by the Company's works or operations :
- (6) If any injury to or interference with any railway of the railway companies or any bridge or works of such companies or any interruption to the traffic on any such railway shall arise or be occasioned at any time by the works or operations of the Company they shall subject to any order or determination by the Board of Trade under subsections (2) and (3) of this section forthwith make good or remove such injury interference or interruption at their own expense or the railway companies may execute the necessary works for that purpose at the expense of the Company and the Company shall if so determined by the arbiter repay to the railway companies all costs and expenses properly incurred by them in so doing and all loss or damage sustained by the railway companies in consequence of such injury interference or interruption :
- (7) Nothing in this Order contained or which may be done in pursuance thereof shall prevent the railway companies from maintaining and repairing and when necessary altering or reconstructing any railway or bridge or other

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—

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work of the railway companies without interference on the part of the Company and without incurring any liability to the Company or to any party working or using the tramways for any loss injury damage expense or interruption of traffic which may arise from such maintenance repair alteration or reconstruction and any extra expense which the railway companies may incur in such maintenance repair alteration or reconstruction by reason of the construction or existence of the tramways shall be paid by the Company and such extra expense if any shall be determined by the arbiter to be appointed as after mentioned. Provided that all such operations shall be executed by the railway companies in such manner as to cause as little interruption or inconvenience as practicable to the traffic on the tramways and the railway companies shall if necessary lay at their own expense temporary tramways to maintain the continuity of the tramway traffic and the railway companies shall give fourteen days' notice in writing to the Company before commencing any such operations and the same so far as interfering with the tramways shall be conducted at the sight and to the reasonable satisfaction of the engineer of the Company :

- (8) If any difference shall arise between the Company and the railway companies or any of them or their engineer under this section as to any plans and sections or as to any work or the method of executing the same or as to any expenses referred to in this section the same shall be determined by an engineer to be agreed upon between the Company and the railway companies respectively or failing agreement to be nominated by the Board of Trade on the application of any of the parties and the cost of the reference shall be borne and paid as such engineer shall direct :
- (9) In the event of the telegraphic telephonic or electrical signal communications of the railway companies or any of them being at any time injuriously affected by induction or otherwise by reason of the electric lines of the Company the Company shall be at the expense of such remedial works as may be necessary for the protection of the railway companies and in the event of any difference between the Company and any of the

railway companies regarding the remedial works to be adopted such difference shall be determined by an engineer to be agreed upon or appointed by the Board of Trade as aforesaid : A.D. 1904.

(10) The Company shall not under the powers of this Order within the burgh purchase take or use any land or property of any of the railway companies without their consent :

(11) Nothing in this section shall affect the rights and powers of the town council as road authority or shall confer on the railway companies any power over the roads or railways laid thereon not existing at the passing of the Act confirming this Order.

36. Any paving metalling or material excavated by the Company in the construction of the tramways or works from any road or bridge under the jurisdiction or control of any road authority may be applied by the Company so far as may be necessary in or towards the reinstating of the road or bridge and the maintenance for six months after completion of any of the tramways within the district of such road authority of so much of the roadway on either side of such tramways as the Company are by section 28 of the Tramways Act 1870 required to maintain and the Company shall if so required deliver the surplus paving metalling or material not used or required to be retained for the purposes aforesaid to the surveyor of the road authority or to such person or persons as he may appoint to receive the same Provided that if within seven days after the setting aside of the surplus arising from the excavation of any such paving metalling or material and notice duly given such surplus is not removed by such surveyor or by some other person named by him for that purpose such surplus paving metalling or material shall absolutely vest in and belong to the Company and may be dealt with removed and disposed of by them in such manner as they may think fit Any difference between the Company and any road authority or surveyor or other person with reference to any of the matters aforesaid shall be settled by a referee to be nominated by the Board of Trade on the application of either party.

Application
of road
materials
excavated in
construction
of works.

37. Subject to the provisions of this Order the Company may demand and take for every passenger travelling upon the tramways or any portion thereof including tolls for the use of the tramway and of carriages and for motive power and every other expense

Tolls for
passengers.

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A.D. 1904. incidental to such conveyance any tolls fares or charges not exceeding one penny per mile and in computing the said tolls fares or charges a fraction of a mile shall be deemed a mile.

Passengers' luggage.

38. Every passenger travelling upon the tramways may take with him his personal luggage not exceeding twenty-eight pounds in weight without any charge being made for the carriage thereof all such luggage to be carried by hand and at the responsibility of the passenger and not to occupy any part of a seat nor to be of a form or description to annoy or inconvenience other passengers.

Company not to carry goods.

39. The Company shall not except for the town council or road authority carry on the tramways any goods articles or things (other than passengers' luggage not exceeding the weight hereinbefore mentioned and parcels or packages of goods not exceeding five hundred pounds in weight).

Rates for carriage of parcels or packages of goods.

40. The Company may demand and take in respect of any parcels or packages of goods conveyed by them on the tramways or any of them including every expense incidental to the conveyance any rates or charges not exceeding the following:—

For any parcel not exceeding seven pounds in weight three-pence :

For any parcel exceeding seven pounds and not exceeding fourteen pounds in weight fivepence :

For any parcel exceeding fourteen pounds and not exceeding twenty-eight pounds in weight sevenpence :

For any parcel exceeding twenty-eight pounds and not exceeding fifty-six pounds in weight ninepence :

For any parcel exceeding fifty-six pounds but not exceeding five hundred pounds in weight such sum as the Company may think fit.

Company not to carry goods during certain hours.

41. The Company shall not carry goods articles or things (other than passengers' luggage and parcels or packages of goods not exceeding five hundred pounds in weight) between the hours of 8 a.m. and 6 p.m. except with the consent of the town council.

For protection of Clyde Valley Electrical Power Company.

42. Nothing in this Order shall extend to or authorise any interference with electric lines conduits or works of the Clyde Valley Electrical Power Company except in accordance with and subject to the provisions of sections 15 and 17 of the Electric Lighting Act 1882 and sections 17 18 and 77 of the Schedule to the Electric Lighting (Clauses) Act 1899.

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43.—(1) In addition to the service prescribed by the section of this Order the marginal note whereof is "Service of carriages" the Company at all times after the opening of the tramways for public traffic shall (except when prevented by causes beyond their control) and they are hereby required to run one or more cars as may be necessary each way every morning in the week and every evening in the week (Sundays and public holidays always excepted) at such hours as the town council may from time to time reasonably require or as may be fixed by the Board of Trade for artisans mechanics factory operatives and daily labourers at fares not exceeding one halfpenny per mile every fraction of a mile being reckoned as a mile (the Company nevertheless not being required to take any fare less than one halfpenny) and the Company shall also run one or more of such cars as may be necessary at the like fares between the hours of nine and ten o'clock forenoon one and two o'clock afternoon and five and six o'clock at night or between such other hours as the town council may from time to time reasonably require or as may be fixed by the Board of Trade.

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 Cheap fares
 for labouring
 classes.

(2) If complaint is made to the Board of Trade that a proper and sufficient service is not provided the Board after considering the circumstances of the complaint may by order direct the Company to provide such service and at such times as may appear to the Board to be reasonable.

(3) The Company shall be liable to a penalty not exceeding five pounds for every day during which they fail to comply with the provisions of this section or with any order of the Board of Trade made under this section.

44. From and after the time when the tramways shall have been opened for public traffic the Company shall (except when prevented by causes beyond their control) be bound as a minimum ordinary service to cause one car to be run each way on each of the tramways every thirty minutes on week days throughout the year and such service shall commence at seven o'clock in the morning and end with a car starting from each terminus of the tramways not earlier than ten o'clock at night.

Service of
 carriages.

45. It shall not be lawful for the Company or any other company or person working or using the tramways to take or demand on Sundays or public holidays any higher tolls fares or charges than those levied by them on ordinary week days.

As to fares
 on Sundays
 and holidays.

46. The rates and charges by this Order authorised shall be paid to such persons and at such places upon or near to the

Payment of
 rates and
 charges.

[Ch. i.] *Dumbarton Tramways Order Confirmation* [4 EDW. 7.]
Act, 1904.

A.D. 1904. — tramways and in such manner and under such regulations as the Company may by byelaw made under this Order appoint.

Periodical
revision of
rates and
charges.

47. If at any time after three years from the opening for public traffic of the tramways or any portion thereof or after three years from the date of any order made in pursuance of this section in respect of the tramways or any portion thereof it is represented in writing to the Board of Trade by the local authority of any district in which the tramways or such portion are or is wholly or partly situate or by twenty inhabitant ratepayers of that district or by the Company that under the circumstances then existing all or any of the fares or other charges demanded and taken in respect of the traffic on the tramways or on such portion should be revised the Board of Trade may (if they think fit) direct an inquiry by a referee to be appointed by the said Board in accordance with the provisions of the Tramways Act 1870 and if the referee reports that it has been proved to his satisfaction that all or any of the tolls fares or charges should be revised the said Board may subject to the maximum tolls fares or charges authorised by this Order by order in writing alter modify reduce or increase all or any of the tolls fares or charges to be taken in respect of the tramways or on any portion thereof and thenceforth such order shall be observed until the same is revoked or modified by an order of the Board of Trade made in pursuance of this section.

Provisions
as to motive
power.

48. The carriages used on the tramways may be moved by animal power or subject to the following provisions by mechanical power (that is to say):—

- (1) The mechanical power shall not be used except with the consent of and according to a system approved of by the Board of Trade:
- (2) The Board of Trade shall make regulations (in this Order referred to as "the Board of Trade regulations") for securing to the public all reasonable protection against danger arising from the use under this Order of mechanical power on the tramways and for regulating the use of mechanical power:
- (3) The Company or any other company or person using any mechanical power on the tramways contrary to the provisions of this Order or of the Board of Trade regulations shall for every such offence be liable to a penalty not exceeding ten pounds and also in the

case of a continuing offence to a further penalty not exceeding five pounds for every day during which such offence is continued after conviction thereof: A.D. 1904.

(4) The Board of Trade if they are of opinion—

(a) That the Company or such other company or person have or has made default in complying with the provisions of this Order or of the Board of Trade regulations whether a penalty in respect of such non-compliance has or has not been recovered; or

(b) That the use of mechanical power as authorised under this Order is a danger to the passengers or the public;

may by order either direct the Company or such other company or person to cease to use such mechanical power or permit the same to be continued only subject to such conditions as the Board of Trade may impose and the Company or such other company or person shall comply with every such order. In every such case the Board of Trade shall make a special report to Parliament notifying the making of such order.

49. The following provisions shall apply to the use of electrical power under this Order unless such power is entirely contained in and carried along with the carriages:— Special provisions as to use of electrical power.

(1) The Company shall employ either insulated returns or uninsulated metallic returns of low resistance:

(2) The Company shall take all reasonable precautions in constructing placing and maintaining their electric lines and circuits and other works of all descriptions and also in working their undertaking so as not injuriously to affect by fusion or electrolytic action any gas or water pipes or other metallic pipes structures or substances or to interfere with the working of any wire line or apparatus from time to time used for the purpose of transmitting electrical power or of telegraphic telephonic or electric signalling communication or the currents in such wire line or apparatus:

(3) The electrical power shall be used only in accordance with the Board of Trade regulations and in such regulations provision shall be made for preventing fusion or injurious electrolytic action of or on gas or water pipes

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or other metallic pipes structures or substances and for minimising as far as is reasonably practicable injurious interference with the electric wires lines and apparatus of other parties and the currents therein whether such lines do or do not use the earth as a return :

- (4) The Company shall be deemed to take all reasonable precautions against interference with the working of any wire line or apparatus if and so long as they adopt and employ at the option of the Company either such insulated returns or such uninsulated metallic returns of low resistance and such other means of preventing injurious interference with the electric wires lines and apparatus of other parties and the currents therein as may be prescribed by the Board of Trade regulations and in prescribing such means the Board shall have regard to the expense involved and to the effect thereof upon the commercial prospects of the undertaking :
- (5) At the expiration of two years from the passing of the Act confirming this Order the provisions of this section shall not operate to give any right of action in respect of injurious interference with any electric wire line or apparatus or the currents therein unless in the construction erection maintaining and working of such wire line and apparatus all reasonable precautions including the use of an insulated return have been taken to prevent injurious interference therewith and with the currents therein by or from other electric currents :
- (6) If any difference arises between the Company and any other party with respect to anything herein-before in this section contained such difference shall unless the parties otherwise agree be determined by the Board of Trade or at the option of the Board by an arbiter to be appointed by the Board and the costs of such determination shall be in the discretion of the Board or of the arbiter as the case may be :
- (7) The expression " Company " in this section shall include licencees and any person owning working or running carriages over any tramway of the Company.

Byelaws.

50. Subject to the provisions of this Order the Board of Trade may make byelaws with regard to any of the tramways upon which

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mechanical power may be used for all or any of the following purposes (that is to say) :— A.D. 1904.

For regulating the use of any bell whistle or other warning apparatus fixed to the engine or carriages :

For regulating the emission of smoke or steam from engines used on the tramways :

For providing that engines and carriages shall be brought to a stand at the intersection of cross streets and at such places and in such cases of horses being frightened or of impending danger as the Board of Trade may deem proper for securing safety :

For regulating the entrance to exit from and accommodation in the carriages used on the tramways and the protection of passengers from the machinery of any engine used for drawing or propelling such carriages :

For providing for the due publicity of all byelaws and Board of Trade regulations in force for the time being in relation to the tramways by exhibition of the same in conspicuous places on the carriages and elsewhere.

Any person offending against or committing a breach of any of the byelaws made by the Board of Trade under the authority of this Order shall be liable to a penalty not exceeding forty shillings.

51. In addition to the regulations for the purposes mentioned in section 46 of the Tramways Act 1870 the Company may make byelaws for the following matters :— Power for Company to make bye-laws.

For preventing the commission of any nuisance in or upon any carriage or in or against any premises belonging to them for the purposes of the undertaking ;

For regulating the travelling in or upon any carriage used upon the tramways and belonging to them :

And the provisions of the Tramways Act 1870 with respect to regulations and the enforcement thereof shall extend and apply to all such byelaws.

52. Subject to the provisions of this Order the Company may lay down construct erect and maintain on in under or over the surface of any street highway road including the footways thereof or public place in which the tramways or any of them are or is laid such posts conductors wires tubes mains plates cables ropes conduits and other apparatus as may be necessary or proper either for the working of the tramways by mechanical Power to lay and maintain pipes and make openings in streets.

[Ch. i.] *Dumbarton Tramways Order Confirmation* [4 EDW. 7.]
Act, 1904.

A.D. 1904. — power or for providing access to or forming connexions with any generating stations engines machinery or apparatus and for any of such purposes may make and maintain all necessary openings and ways on in or under any such surface.

Apparatus
used for
mechanical
power to be
deemed part
of tramway.

53. The provisions of sections 26 to 33 and section 41 of the Tramways Act 1870 (except so much of section 28 as relates to the repair of the road between and on each side of the rails of a tramway) shall apply as if all posts conductors wires tubes mains plates cables ropes conduits and other apparatus used or to be used by the Company for the purposes of mechanical power were parts of the tramway and all works to be executed by the Company in any road footpath or place for working the tramways by mechanical power in pursuance of the powers of this Order shall be deemed to be works of a tramway subject in all respects to the provisions of section 30 of the Tramways Act 1870 as if they had been therein expressly mentioned.

Recovery of
penalties.

54. Any penalty under this Order or under any byelaws or regulations made under this Order may be recovered in manner provided by the Summary Jurisdiction (Scotland) Acts.

Amendment
of Tramways
Act 1870 as
to byelaws
by local
authority.

55. The provisions of the Tramways Act 1870 relating to the making of byelaws by the local authority with respect to the rate of speed to be observed in travelling on the tramways shall not authorise the local authority to make any byelaws sanctioning a higher rate of speed than that authorised by the Board of Trade regulations at which carriages are to be driven or propelled on the tramways under the authority of this Order.

Penalty for
malicious
damage.

56. If any person wilfully does or causes to be done with respect to any apparatus used for or in connexion with the working of any tramway of the Company anything which is calculated to obstruct or interfere with the working of such tramway or to cause injury to any person he shall (without prejudice to any proceedings by way of interdict or otherwise to which he may be subject) be guilty of an offence punishable on summary conviction and every person convicted of such offence or of any offence under section 50 of the Tramways Act 1870 with respect to any tramway of the Company shall be liable to a penalty not exceeding twenty pounds.

Orders &c.
of Board
of Trade.

57. All orders regulations and byelaws made by the Board of Trade under the authority of this Order shall be signed by a secretary or an assistant secretary of the Board.

58. The Company may with the consent of the owner of any building attach to that building such brackets wires and apparatus as may be required for the working of the tramways by mechanical power :

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Attachment
of wires &c.
to buildings.

Provided that—

(a) Where in the opinion of the Company any consent under this section is unreasonably refused they may appeal to the sheriff who shall have power having regard to the character of the building and the other circumstances of the case to allow the attachment subject to such terms as to compensation or rent and otherwise as he may think reasonable or to disallow the same and may determine by which of the parties the costs of the appeal are to be paid :

(b) Any consent of an owner and any order of the sheriff under this section shall not have effect after that owner ceases to be in possession of the building but any attachments fixed under the provisions of this section shall not be removed until the expiration of three months after any subsequent owner shall have given to the Company notice in writing requiring the attachments to be removed Where such notice is given the preceding provisions of this section shall apply and the sheriff shall have the same powers as under proviso (a) :

(c) The owner may require the Company to temporarily remove the attachments where necessary during any reconstruction or repair of the building.

For the purpose of this section any occupier of a building whose tenancy exceeds one year unexpired and in the case of any other tenancy the person receiving the rent shall be deemed to be the owner.

59. The Company may in the case of the railway bridge belonging to the Lanarkshire and Dumbartonshire Railway crossing the public road known as the Glasgow Road and in the case of the railway bridge of the Dumbarton and Balloch Joint Line crossing the public road known as Bonhill Road attach to the under side of each of such bridges respectively such brackets wires and apparatus as may be required for the working of the tramways by mechanical power Provided always that all such attachments shall be made and protected to the reasonable satisfaction of the engineer of the respective railway company.

Attachment
of wires &c.
to railway
bridges.

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Posts &c. to
be removed
if user dis-
continued.

60. If the Company shall discontinue the use of any posts brackets or overhead electric wires placed or maintained in or over any building street or road for supplying electrical motive power to the carriages used upon the tramways or if the right of the Company to use electrical motive power supplied by means of any such posts brackets or wires shall cease and determine the Company shall forthwith at their own cost remove such posts brackets and wires and shall restore and make good such building street and road to the satisfaction of the road authority and in case of default such road authority may do all things necessary for that purpose and recover the costs and expenses thereof in any court of competent jurisdiction.

Agreements
as to work-
ing &c. of
tramways.

61. The Company and any local or road authority may with the consent of the Board of Trade and subject to the provisions of this Order enter into agreements with respect to the working maintenance repair and management of the tramways or any portion thereof and to the placing by any local or road authority or by the Company on such terms and conditions as may be agreed upon of electric mains wires tubes and pipes belonging to the local or road authority or to the Company in any conduit channel or trench constructed by the local or road authority or the Company.

Provisions as
to arbitra-
tion.

62. Where under the provisions of the Tramways Act 1870 or this Order any matter in difference is referred to arbitration the provisions of the Arbitration (Scotland) Act 1894 or any Act or rules whereby the same has been or may be modified or superseded shall apply to every such arbitration and the decision of the arbiter shall be final and conclusive and binding on all parties and the Company shall be subject to the jurisdiction of the sheriff court of Stirling Dumbarton and Clackmannan at Dumbarton and of the Court of Session.

Form and
delivery of
notices.

63. With respect to notices and the delivery thereof by or to the Company the following provisions shall have effect (namely):—

- (1) Every notice given by the Company or by the local or road authority shall be sufficiently authenticated by being signed by their secretary or clerk as the case may be :
- (2) Any notice to be delivered by or to the Company to or by the local or road authority or other body may be delivered by being left at the office of such local or road authority or other body or of the Company within the burgh (as the case may be) or by being sent by post addressed to their respective clerk or secretary at their

office within the burgh or to such other office as the local or road authority or other body or the Company as the case may be may from time to time by notice to the other request that such notice may be sent or delivered and for the purposes of this section the Company shall be bound to maintain an office within the burgh.

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64.—A. Notwithstanding anything in this Order contained if any of the works authorised to be executed by this Order involves or is likely to involve any alteration of any telegraphic line belonging to or used by the Postmaster-General the provisions of section 7 of the Telegraph Act 1878 shall apply (instead of the provisions of section 30 of the Tramways Act 1870) to any such alteration.

For protec-
tion of Post-
master-
General.

B. In the event of any tramways of the Company being worked by electricity the following provisions shall have effect:—

- (1) The Company shall construct their electric lines and other works of all descriptions and shall work their undertaking in all respects with due regard to the telegraphic lines from time to time used or intended to be used by His Majesty's Postmaster-General and the currents in such telegraphic lines and shall use every reasonable means in the construction of their electric lines and other works of all descriptions and the working of their undertaking to prevent injurious affection whether by induction or otherwise to such telegraphic lines or the currents therein. Any difference which arises between the Postmaster-General and the Company as to compliance with this subsection shall be determined by arbitration:
- (2) If any telegraphic line of the Postmaster-General is injuriously affected by the construction by the Company of their electric lines and works or by the working of the undertaking of the Company the Company shall pay the expense of all such alterations in the telegraphic lines of the Postmaster-General as may be necessary to remedy such injurious affection:
- (3) Before any electric line is laid down or any act or work for working the tramways by electricity is done within ten yards of any part of a telegraphic line of the Postmaster-General (other than repairs) the Company or their agents not more than twenty-eight nor less than fourteen days before commencing the work shall

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give written notice to the Postmaster-General specifying the course of the line and the nature of the work including the gauge of any wire and the Company and their agents shall conform with such reasonable requirements (either general or special) as may from time to time be made by the Postmaster-General for the purpose of preventing any telegraphic line of the Postmaster-General from being injuriously affected by the said act or work Any difference which arises between the Postmaster-General and the Company as to any requirement so made shall be determined by arbitration :

(4) If any telegraphic line of the Postmaster-General situate within one mile of any portion of the works of the Company is injuriously affected and he is of opinion that such injurious affection is or may be due to the construction of the Company's works or to the working of their undertaking the engineer-in-chief of the Post Office or any person appointed in writing by him may at all times when electrical energy is being generated by the Company enter any of the Company's works for the purpose of inspecting the Company's plant and the working of the same and the Company shall in the presence of such engineer-in-chief or such appointed person as aforesaid make any electrical tests required by the Postmaster-General and shall produce for the inspection of the Postmaster-General the records kept by the Company pursuant to the Board of Trade regulations :

(5) In the event of any contravention of or wilful non-compliance with this section by the Company or their agents the Company shall be liable to a fine not exceeding ten pounds for every day during which such contravention or non-compliance continues or if the telegraphic communication is wilfully interrupted not exceeding fifty pounds for every day on which such interruption continues :

(6) Provided that nothing in this section shall subject the Company or their agents to a fine under this section if they satisfy the court having cognisance of the case that the immediate doing of any act or the execution

of any work in respect of which the penalty is claimed was required to avoid an accident or otherwise was a work of emergency and that they forthwith served on the postmaster or sub-postmaster of the postal telegraph office nearest to the place where the act or work was done a notice of the execution thereof stating the reason for doing or executing the same without previous notice: A.D. 1904.

- (7) For the purposes of this section a telegraphic line of the Postmaster-General shall be deemed to be injuriously affected by an act or work if telegraphic communication by means of such line is whether through induction or otherwise in any manner affected by such act or work or by any use made of such work:
- (8) For the purposes of this section and subject as therein provided sections 2 10 11 and 12 of the Telegraph Act 1878 shall be deemed to be incorporated with this Order:
- (9) The expression "electric line" has the same meaning in this section as in the Electric Lighting Act 1882:
- (10) Any question or difference arising under this section which is directed to be determined by arbitration shall be determined by an arbitrator appointed by the Board of Trade on the application of either party whose decision shall be final and sections 30 to 32 both inclusive of the Regulation of Railways Act 1868 shall apply in like manner as if the Company or their agents were a company within the meaning of that Act:
- (11) Nothing in this section contained shall be held to deprive the Postmaster-General of any existing right to proceed against the Company by indictment action or otherwise in relation to any of the matters aforesaid:
- (12) In this section the expression "the Company" includes their lessees and any person owning working or running carriages on any of the tramways of the Company.

65. The Company shall deliver to the Registrar of Joint Stock Companies a printed copy of the Act confirming this Order and he shall retain and register the same and if such copy is not so delivered within three months from the passing of the Act confirming this Order the Company shall incur a penalty not exceeding two pounds for every day after the expiration of those three months during which the default continues and any director or manager of the

Copy of
Order to be
registered.

[Ch. i.] *Dumbarton Tramways Order Confirmation* [4 EDW. 7.]
Act, 1904.

A.D. 1904. Company who knowingly and wilfully authorises such default shall incur the like penalty Every penalty under this section shall be recoverable summarily There shall be paid to the registrar by the Company on such copy being registered the like fee as is for the time being payable under the Companies Acts 1862 to 1900 on registration of any document other than a memorandum of association.

Provision as
to general
Tramway
Acts.

66. Nothing in this Order contained shall exempt the Company or the tramways of the Company from the provisions of any general Act relating to tramways passed before or after the passing of the Act confirming this Order or from any future revision or alteration under the authority of Parliament of the maximum tolls rates or charges authorised by this Order.

Costs of
Order.

67. All costs charges and expenses of and incident to the preparing for obtaining and confirming of this Order or otherwise in relation thereto shall be paid by the Company.

The SCHEDULE referred to in the foregoing Order.

LANDS FOR THE GENERATION OF ELECTRICITY.

Certain lands in the parish of Dumbarton and Royal Burgh of Dumbarton and county of Dumbarton bounded on the south by the Glasgow Road on the north by the Glasgow Dumbarton and Helensburgh line of the North British Railway Company on the west by the Lanarkshire and Dumbarton Railway and on the east by the Gruggie's Burn and a line continuing the northward direction of the said burn till it cuts the Glasgow Dumbarton and Helensburgh line at a point 157 yards or thereabouts westward of the farm road to Silverton Hill being No. 304 and part of No. 344 on the $\frac{1}{2500}$ Ordnance map (2nd edition 1898) of that parish and containing 7.98 acres or thereabouts.

Printed by EYRE and SPOTTISWOODE,

FOR

T. DIGBY PIGOTT, Esq., C.B., the King's Printer of Acts of Parliament.

And to be purchased, either directly or through any Bookseller, from
EYRE AND SPOTTISWOODE, EAST HARDING STREET, FLEET STREET, E.C.; or
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